

213-215 HALSTEAD AVENUE
MAMARONECK, NEW YORK 10604

LEASE

Between

DEPACK PROPERTIES II, LLC, as Landlord

And

AUGUSTINE'S SALUMERIA LLC, as Tenant

Dated: October __, 2021

LEASE

THIS LEASE, made this ____ day of October, 2021, (the “Effective Date”), by and between DEPACK PROPERTIES II, LLC, a New York Limited Liability Company whose mailing address is c/o 917 Realty LLC, 420 Lexington Avenue, Suite 300, New York, New York 10170, hereinafter called “**Landlord**”, and Augustine’s Salumeria LLC., a New York Limited Liability Company whose mailing address is 39 Calam Avenue, Ossining, NY 10562, hereinafter called “**Tenant**”:

WITNESSETH:

1. A. **PREMISES:**

Landlord does hereby demise and lease to Tenant, and Tenant does hereby take and hire from Landlord, certain real property consisting of a one story building, consisting of approximately 2600 sq ft of retail space, further identified as 213-215 Halstead Avenue, Mamaroneck, New York 10543 (the “Building”) together with any and all improvements and betterments which now are or which shall be situated on said real property, including but not limited to, utilities and appurtenances thereunto belonging or appertaining (collectively, the “Leased Premises”). The premises is being leased “As Is”.

 B. **PERMITTED USE.**

The Leased Premises may be used for the operation of a Casual or Fine Dining Restaurant with Bar;

2. **TERM:**

The term of this Lease shall be for a period commencing on October 15, 2021 (the “Rental Commencement Date”) and shall expire at midnight on the date that is Ten (10) years thereafter (the “Term”). There are two lease renewal options at the end of the initial term for five (5) years each.

3. **RENT:**

A. **Key Money:** Twenty-Five Thousand Dollars (\$25,000.00) payable upon execution of this Lease. Includes the purchase of all furniture, fixtures, equipment, small wares, etc. that are currently on the premises, free of all liens and encumbrances.

B. **Base Rent:** Base rent for years 1-10 shall be as follows:

<u>Start Date</u>	<u>End Date</u>	<u>Base Rent</u>
10/15/2021	3/15/2022	\$0.00
3/15/2022	10/15/2022	\$6,500.00
10/15/2022	10/15/2023	\$6,727.50
10/15/2023	10/15/2024	\$6,962.96
10/15/2024	10/15/2025	\$7,206.67
10/15/2025	10/15/2026	\$7,458.90
10/15/2026	10/15/2027	\$7,719.96
10/15/2027	10/15/2028	\$7,990.16
10/15/2028	10/15/2029	\$8,269.82
10/15/2029	10/15/2030	\$8,559.26
10/15/2030	10/15/2031	\$8,858.83

C. **Escalations:** There will be a 3.5% compounded annual increase for years 2-10, as is illustrated and indicated in B. above. The 3.5% escalations will also apply to both of the five (5) year lease extensions if they are exercised.

D. **Additional Rent:**

Tax Increase: Commencing on January 1, 2023 and going forward Tenant will be responsible for 100% of any tax increase based upon the previous respective municipal fiscal year's property, town/ village taxes. Additional Rent is payable on a pro rata basis for months that require rent payment.

E. **Payment Due Dates:**

Two month's security Deposit in the amount of Thirteen Thousand Dollars (\$13,000.00), first month's rent in the amount of Six Thousand Five Hundred Dollars (\$6,500.00) and the Key Money in the amount of Twenty-Five Thousand Dollars (\$25,000.00) for a total of Forty-four Thousand Five Hundred Dollars (\$44,500.00) due at lease signing.

Base Rent and any Additional Rent, as defined herein, are due, in advance, without notice or demand from Landlord, on the fifteenth (15th) day of each calendar month commencing on the fifteenth (15th) day of the first month after the Rental Commencement Date. Base Rent and any Additional Rent from the Rental Commencement Date to the first day of the month shall be paid with the first month's rent. Base Rent and Additional Rent will be prorated from the Rental Commencement Date to the last day of the month after the Rental Commencement Date. Additional Rent shall be defined as all Taxes, as hereinafter set forth, and any other sums of money due Landlord from Tenant under this Lease. Base Rent and Additional Rent may be referred to as "Rent". In the event that any payment of Rent is not paid within ten (10) days after written notification from Landlord, then any such payment shall bear interest at a rate per annum equal to the lesser of (a) ten percent (10%) and (b) the maximum interest rate that may be lawfully charged (the "Interest Rate") from and after the date such payment is first due to Landlord.

4 **INSURANCE:**

A. Throughout the Term, Tenant shall purchase and keep in force and effect: (i) Comprehensive General Liability insurance against any liability, providing combined single limit per occurrence coverage of not less than One Million Dollars (\$1,000,000), Two Million Dollars (\$2,000,000) policy in the aggregate for property damage and bodily injury or death of one or more persons, with endorsements for contractual liability; and (ii) property fire and casualty insurance. Tenant covenants and agrees at all times during the original term of this Lease and any Renewal Term to maintain and keep in force comprehensive general liability insurance against all claims for personal injury, death, or property damage occurring on the Leased Premises with minimum limits of liability of One Million Dollars (\$1,000,000.00) per occurrence, Two Million Dollars (\$2,000,000.00) policy in the aggregate by a carrier licensed to do business in the State of New York with an A.M. Best's Insurance Guide Rating of A or better. Tenant shall furnish certificates of insurance evidencing payment thereof to Landlord as the same shall be requested in writing from time to time by Landlord but, at least, yearly upon renewal. All such insurance policies shall name Landlord as an additional insured as its interest may appear and such policies may be maintained under a "blanket insurance policy" of Tenant. Such insurance company shall endeavor to provide thirty (30) days' prior written notice to any cancellation to Landlord and

Tenant, and any holder of a mortgage on the Leased Premises. Tenant shall carry Worker's Compensation Insurance as required by law.

B. The tenant must maintain appropriate dram shop insurance and employee training on the dram shop laws. Evidence of alcohol training and certification by the tenant's "Front of House staff" ("Front of House staff" refers to employees situated in the public dining areas only, and excludes kitchen staff) shall be provided to the Landlord yearly commencing on November 15, 2021.

C. Fire and Extended Coverage Property Insurance. From and after the Rental Commencement Date, Tenant shall, at its cost and expense and at all times during the Term, maintain in force, for the joint benefit of Landlord and Tenant, a policy of insurance against loss or damage by fire and lightning, and such other perils as are covered under the broadest form of the "extended coverage" or "all risk" endorsements available in the state where the Leased Premises are located, including, but not limited to, damage by wind storm, hurricane, explosion, smoke, sprinkler leakage, vandalism, malicious mischief, and such other risks as are normally covered by such endorsements. Any leasehold mortgagee shall be named as required by its loan documents; however, any insurance proceeds shall be applied in the manner as set forth in this Lease. Any renewal certificates and proof of payment of premium therefor shall be delivered to Landlord not less than fifteen (15) days prior to the renewal date of any such insurance policies during the term. Such insurance company shall endeavor to provide thirty (30) days' prior written notice to any cancellation to Landlord, Tenant, and at Landlord's request any holder of a mortgage on Landlord's interest in the Leased Premises. In the event Tenant fails to timely pay any premium when due, Landlord shall be authorized to do so, and may charge all costs and expenses thereof, including the premium, to Tenant, to be paid by Tenant as Additional Rent hereunder. Notwithstanding anything contained in this Lease to the contrary, except to the extent not covered by Tenant's insurance and caused by the negligence or omission caused by Landlord or Landlord's contractors, agents or employees, Tenant shall be solely responsible for the insurance for, and in the event of fire or other casualty, the reconstruction, replacement and repair of any damage to any property within the Leased Premises, including Tenant's furniture, fixtures and equipment and all other personal property of Tenant and all alterations, construction and other improvements made to the Leased Premises, or any replacements or additions thereto, and Landlord's obligation, if any, shall be as to the shell, which constitutes the structure of the Building and any Building-wide

systems that service the Leased Premises, up to the point of connection thereto. Notwithstanding anything herein to the contrary, Tenant shall not be responsible for the insurance for, and in the event of fire or other casualty, the reconstruction, replacement and repair of any damage where same were made necessary by any act, omission, or negligence of Landlord, or its employees, agents, invitees, or contractors.

D. Waiver of Subrogation. Landlord and Tenant and all parties claiming under them mutually release and discharge each other from all claims and liabilities arising from or caused by any casualty or hazard covered or required hereunder to be covered in whole or in part by the casualty and liability insurance to be carried on the Leased Premises or in connection with any improvements on or activities conducted on the Leased Premises, and waive any right of subrogation that might otherwise exist in or accrue to any person on account thereof, and evidence such waiver by endorsement to the required insurance policies, provided that such release shall not operate in any case where the effect is to invalidate or increase the cost of such insurance coverage (provided that in the case of increased cost, the other party shall have the right, within thirty (30) days following written notice, to pay such increased cost, thereby keeping such release and waiver in full force and effect). However, if one party's insurance carrier prohibits waiver of subrogation, then the other party's release and waiver will become null and void, it being understood that in this instance each waiver is given in consideration for the other.

4 UTILITIES:

Landlord shall provide separate meters for electricity, water and gas. Tenant shall pay all utilities including but not limited to water, gas, electricity, telephone, sanitary sewer, trash disposal, and any and all other utilities for the Leased Premises directly to the provider of said utility. Tenant is responsible to maintain, repair the HVAC Unit as well as all mechanical, plumbing and electrical inside and outside the demised premises.

5 CONSTRUCTION OR IMPROVEMENTS:

A. Alterations to the Property

Tenant will outfit the demised space with all furnishings, fixtures, and equipment as needed to operate a restaurant with bar. The Tenant will be responsible for the installation, maintenance, and repair of the necessary equipment and is responsible for the cost of the same. The Tenant is

responsible for any and all damage caused to the premises during renovations or alterations. All alterations and signage must be approved by Landlord prior to submission to the building department for approvals. Structural improvements shall remain.

B. Zoning, Licenses, Permits and Financing

Tenant shall be responsible for obtaining, at Tenant's sole cost and expense all permits, licenses, authorizations and approvals pertaining to Tenant's improvements to Tenant's interior space and exterior signage as well as any and all liquor license or other restaurant related approvals (collectively, the "Approvals"). Each of Tenant and Landlord shall cooperate with the other party in obtaining the Approvals as needed.

6 CASUALTY LOSS:

Tenant shall immediately give notice to Landlord of any material damage to the Leased Premises. Except as otherwise set forth below, if the Leased Premises are damaged by a fire, explosion or other casualty (an "Occurrence"), the Leased Premises shall promptly be repaired or reconstructed by Landlord subject to this Section. Landlord shall not be required to repair or replace Tenant's improvements, alterations and additions, inventory, fixtures, furniture, furnishings, floor coverings, equipment and other personal property. If such damage occurs and (i) the Leased Premises is wholly untenable, (ii) the building of which the Leased Premises is a part is damaged in whole or in part as a result of a risk which is not covered by Landlord's insurance policies, (iii) the Building (whether or not the Leased Premises is damaged or destroyed) is damaged to the extent of fifty percent (50%) or more of the cost of replacement, (iv) less than one (1) years remain in the Lease Term at the time of the Occurrence and the time necessary to rebuild or repair the Building, in the opinion of a reputable contractor selected by Landlord, would exceed ninety (90) days, or (v) Landlord would be required to abate or reduce the Base Rent and Additional Rent for a period in excess of six (6) months if rebuilding or repairs were undertaken, Landlord may repair or rebuild the Leased Premises or the Building(s), or terminate this Lease upon notice of such election in writing to Tenant within ninety (90) days after the Occurrence. In the event (a) the Leased Premises is damaged in whole or in part or rendered completely or partially untenable by an Occurrence, or (b) damage to the Building deprives Tenant of reasonable access to the Lease Premises for more than five (5) consecutive business days, there shall be an abatement of Base Rent and Additional Rent proportionately as to that portion of the Leased Premises

rendered untenable from the date of the Occurrence until the date Tenant reopens for business. Tenant shall maintain sufficient business interruption insurance in an amount equal to at least one year's payment of Rent. Notwithstanding anything to the contrary contained in this Section, Tenant shall not receive an abatement of Rent in the event by reason of some negligent act or omission on the part of Tenant, either (i) Landlord is unable to collect all of the insurance proceeds for damage or destruction of the Leased Premises or the Building by fire or other casualty, or (ii) the Leased Premises or the Building was damaged or destroyed or rendered completely or partially untenable due to an Occurrence and loss of Base Rent is not covered by any rental loss insurance which Landlord may maintain.

If by reason of a material casualty (a) the Leased Premises is damaged in whole or in part during the last two (2) years of the Term (or of any renewal term) or (b) restoration from a casualty causes any material change in zoning, access, parking or visibility of the Leased Premises, , then Tenant may elect to cancel this Lease by written notice of cancellation given to Landlord within one hundred eighty (180) days after the date of such Occurrence, and thereupon this Lease shall cease and terminate with the same force and effect as though the date set forth in the Tenant's said notice were the date herein for the expiration of the Term hereof, and Tenant shall vacate and surrender the Leased Premises to Landlord. Upon the termination of this Lease, as aforesaid, Tenant's liability for Rent shall cease as of the effective date of the termination of this Lease, subject however, to the provisions for the prior abatement of Rent set forth hereinabove.

Upon an Occurrence, Landlord need only repair as is necessary to place the Leased Premises in the same condition as when possession was delivered. Immediately thereafter, Tenant shall, at Tenant's expense, promptly perform Tenant's Work and shall repair or replace its inventory, fixtures, personal property, and if applicable shall promptly reopen for business.

7. **LIENS NOT PERMITTED:**

Tenant shall not, at any time, suffer or permit the attachment to the Leased Premises of any lien for work done or materials furnished in connection with the improvement, maintenance, repair and/or alteration of the Leased Premises by Tenant. If any such lien attributable to the Tenant attaches to the Leased Premises and is not discharged or released within thirty (30) days from the date or receipt by Tenant of written notice of same by Landlord or any other party, Landlord may, at its option, pay to the lien claimant the amount of such lien and notify Tenant of such payment,

in which event such amount shall be immediately due and payable by Tenant and shall bear interest at the Interest Rate; provided, however, that if Tenant desires to contest said lien, Tenant shall, within that thirty (30) day period, and prior to contesting such lien, secure the discharge of such lien by filing in the Office of the Clerk of Court or Register of Deeds where such lien is filed its written undertaking.

8. **SURRENDER OF PREMISES:**

Provided the Tenant has fully and timely performed all of its obligations under this Lease, and is not in default beyond applicable notice or cure provisions, Tenant will deliver up and surrender possession of the Leased Premises to Landlord upon the expiration of this Lease, any renewal or extension hereof, or its termination in any way in a good condition and state of repair, subject to reasonable wear and tear and the provisions of Section 6 above. Surrender of the Leased Premises by Tenant pursuant to this Paragraph shall not, however, affect Tenant's right to recover from Landlord any sums that are owed by Landlord to Tenant on the date of surrender.

9. **DEFAULT BY TENANT:**

If Tenant shall fail to pay any installment of Rent or other monetary obligation promptly on the day the same shall become due and payable hereunder, and such failure shall continue for a period of ten (10) days, after written notice by Landlord, or if Tenant shall fail to keep and perform promptly any other affirmative covenant of this Lease, in accordance with the terms of this Lease and such failure shall continue for a period of thirty (30) days, after written notice by landlord, the Landlord may terminate the Lease and enter into the Leased Premises or any part hereof, without process of law, and expel Tenant or any person occupying the same in or upon said Leased Premises, and Tenant shall reimburse Landlord for all of Landlord's reasonable costs and attorney's fees in connection therewith, in which event Tenant may remove from the Leased Premises any or all of its personal property; and Landlord may, at Landlord's sole option, either (a) declare this Lease to be terminated and repossess the Leased Premises or (b) pursue any other remedy available to Landlord at law or in equity for Tenant's breach of this Lease. However, if the non-monetary default cannot with due diligence be cured prior to the expiration of thirty (30) days, then Landlord shall not have the right to declare this Lease terminated by reason of such default.

In the event of a default or breach by Tenant the Landlord shall have no obligation to mitigate damages.

Reasonable attorney's fees are estimated at Four Hundred Dollars (\$400.00) per hour.

10. **WARRANTY OF TITLE BY LANDLORD:**

Landlord hereby warrants, represent and covenants to Tenant that Landlord owns fee simple title to the Leased Premises and does warrant and will defend the title to the Leased Premises, and, except for the Permitted Exceptions, will indemnify, defend and hold Tenant harmless against any damage and expense which Tenant may suffer by reason of any lien, encumbrance, restriction or defect in the title or description herein of the Leased Premises (excluding any claims by Tenant for lost profits at the Leased Premises); and Landlord has full authority, right and power to execute this Lease and to lease the Leased Premises for the term provided in this Lease. In case Landlord does not have the title and rights aforesaid, then in such event, in addition to any other rights of Tenant, this Lease shall, at the option of Tenant, become null and void, unless Landlord can cure any title defect in a timely fashion or provide Tenant with a leasehold title insurance policy insuring title free of such objection. Alternatively, Tenant may escrow rent thereafter accruing until Tenant is furnished proof satisfactory to Tenant as to the parties entitled to receive rent. Nothing in this Section shall prohibit Landlord from entering into any other leases, easements or transfer of title to the Leased Premises or other matters affecting title to the Leased Premises so long as such leases, easements, transfers or other matters of title do not materially and adversely affect Tenant's ability to operate its business on the Leased Premises.

11. **GENERAL COVENANTS:**

Landlord covenants, warrants and agrees that on the Effective Date, Tenant, its employees, customers and invitees shall have the non-exclusive rights of ingress and egress in, on and over the Property to and from all streets, alleys and across ways adjacent to the Property except as to any limited access highways adjacent to the Leased Premises.

12. **MAINTENANCE:**

Tenant shall be responsible for all routine, structural and non-structural, maintenance costs associated with maintaining the Leased Premises, including, without limitation, the exterior walls

and roof. Tenant shall be responsible for its own janitorial services, snow removal from any driveways, walkways, or sidewalks adjacent to the building, and for the proper, lawful removal of trash and garbage, including renting a dumpster and engaging a rubbish removal contractor reasonably approved by Landlord. Tenant shall be responsible for any violations, tickets, etc., issued by the municipality or other governing or enforcement body for their failure to comply with this paragraph. (i.e any ticket issued for failure to keep the sidewalk hazard free).

13. **QUIET ENJOYMENT:**

Subject to the Permitted Exceptions, Landlord hereby covenants and agrees that if Tenant shall not then be in default beyond any period for the cure thereof, Tenant shall, at all time during the original term of this Lease and any renewal term, have peaceable and quiet enjoyment and possession of the Leased Premises without any manner of molestation or hindrance from Landlord or any other person, firm or corporation.

14. **TITLE TO BUILDINGS, IMPROVEMENTS, FIXTURES AND EQUIPMENT:**

Title to the Building and all other improvements on the Leased Premises, any repairs, alterations, additions or improvements to said Building or improvements shall be vested in and remain in Landlord's name at all times during the original term of this Lease and any renewal or extension thereof. Upon the expiration of the Lease, any extension or renewal hereof, or its termination in any way, title to the Building and any improvements shall remain vested in Landlord.

15. **TENANT'S SIGNS:**

Tenant shall have the right to construct, install and maintain in, on and about the Leased Premises permanent signs, approved for use by Landlord, said approval not to be unreasonably delayed or withheld, advertising Tenant's business, provided that such signs shall be in accordance with all applicable laws, ordinances and governmental regulations.

16. **APPROPRIATION:**

If all or any part of the Leased Premises shall be appropriated, taken or condemned by any public or quasi-public authority in the exercise of its right of condemnation, taking or eminent

domain, both Tenant and Landlord shall have the right to prosecute a claim for an award and to share in the proceeds of any and all awards based upon their respective interests as hereafter set forth. If all the Leased Premises shall be appropriated or condemned, this Lease shall terminate as of the time when possession shall be required by such public or quasi-public authority. Landlord shall be entitled to receive that portion of any and all awards necessary to compensate it for the present value of the rents which it would have received in the future and for the present value of its reversionary interest which shall include the value of all improvements located at the Leased Premises, and notwithstanding the termination of this Lease, Tenant shall be entitled to maintain its own action to compensate it for the value of its improvements to the Leased Premises, the value of its leasehold estate and the damages which it may sustain as a result of termination of this Lease prior to the end of the term, including any renewal terms, to the maximum extent permitted by law.

In the event that a part of the Leased Premises shall be taken or condemned and that (a) the part so taken includes the Building or the Leased Premises or any part thereof, or (b) such partial taking shall result in cutting off direct access from the Leased Premises to any adjacent public street or highway, or (c) results in the permanent closing or relocation of any street adjoining the Leased Premises to which there is direct access to and from the Leased Premises and materially impairs or adversely affects Tenant's use of the Leased Premises, and Landlord is unable to promptly provide Tenant with a suitable alternate means of access, in Tenant's reasonable opinion, (a "Major Partial Taking"), then, and in any such event, Tenant may, at any time either prior to or within a period of sixty (60) days after the date when the condemning authority shall acquire possession of the property taken or condemned, elect to terminate this Lease. In the event Tenant elects to terminate this Lease, Landlord shall be entitled to receive that portion of any and all awards necessary to compensate it for the present value of the rents which it would have received in the future and for the present value of its reversionary interest and notwithstanding the termination of this Lease, Tenant shall be entitled to maintain its own action to compensate it for the value of its improvements to the Leased Premises, the value of its leasehold estate and the damages which it may sustain as a result of termination of this Lease prior to the end of the term, including any renewal terms to the maximum extent permitted by law. In the event that Tenant shall not elect to terminate this Lease or in the event that a part of the Leased Premises shall be taken or condemned under circumstances under which Tenant will have no such election, then and in either event, and provided Tenant is not then in default under the Lease, Tenant shall receive so

much of any and all awards as is necessary to pay for repairs to and alterations of the improvements on the Leased Premises for the purpose of restoring the same to an economic architectural unit, susceptible to the same use as that which was in effect immediately prior to such taking, and Landlord shall receive the balance, if any, of any awards.

In the event that this Lease shall not terminate after any part of the Leased Premises is taken or condemned, as set forth above, then Landlord and Tenant shall use good faith, diligent efforts to determine the amount of any reduction in Base Rent within sixty five (65) days after the date when the condemning authority shall acquire possession of the property taken or condemned ("Taking Date"). If Landlord and Tenant do not mutually agree upon the amount of any Base Rent reduction within sixty five (65) business days after the Taking Date, then, within ten (10) business days thereafter, each shall select an attorney, who, within thirty (30) days, shall agree upon and select a single arbitrator, who shall by profession be a licensed real estate broker or certified public accountant, actively practicing in the County of Westchester or who shall have been active over the five (5) year period ending on the date of such appointment in the leasing of or accounting for comparable commercial properties in the County of Westchester. Neither Landlord nor Tenant shall consult with such broker or accountant as to his or her opinion as to any reduction in Base Rent prior to the selection. The determination of the arbitrator shall be limited solely to the issue of whether Landlord's or Tenant's submitted Base Rent rate reduction for the Leased Premises is correct, as determined by the arbitrator, taking into account any condemnation or taking of the Leased Premises. The arbitrator shall, within thirty (30) days of his or her appointment, reach a decision and shall notify Landlord and Tenant of such determination and the basis for that determination. Notwithstanding the foregoing, the Tenant shall not pay a Base Rent that is greater than the Base Rent that would have been due had the taking or condemnation not occurred. If Landlord and Tenant fail to agree upon and appoint an arbitrator, then the appointment of the arbitrator shall be made by the Presiding Judge of the Supreme Court, or, if he or she refuses to act, by any judge having jurisdiction over the parties. The cost of arbitration shall be paid by Landlord and Tenant equally.

With the exception of a temporary blocking, not to exceed forty eight (48) hours, by a governmental agency for improvement to any highway right-of-way, in the event that any access for ingress to and/or egress from the Leased Premises, is blocked as a result of any road construction or other improvements, Tenant's obligation to pay Rent shall abate during such period

that the construction or improvements block Tenant's access for ingress to and/or egress from the Leased Premises, unless Landlord provides a suitable alternative means of ingress and egress, but Tenant shall not be relieved from its obligation to pay taxes and other charges and to keep the Leased Premises insured.

17. **SUBORDINATION AND NON-DISTURBANCE:**

A. **Future Mortgages/Deeds of Trust**

This Lease shall be subject and subordinate to the lien of any mortgage and/or deed of trust now existing or in the future which Landlord may place upon the Building or Leased Premises. provided that if there are no defaults hereunder on the part of Tenant beyond any applicable notice and cure periods (1) the right of possession of Tenant to the Leased Premises and Tenant's rights arising out of this Lease shall not be affected or disturbed by the mortgagee or trustee or beneficiary under the mortgage and/or deed of trust in the exercise of any of its rights under the mortgage, deed or trust or the notes secured thereby; and (2) that Tenant shall not in any foreclosure or other proceeding under the mortgage or deed of trust nor in any other way be deprived of its rights under this Lease, nor shall this Lease be terminated or affected by any foreclosure or sale or any proceeding under any mortgage or deed of trust. Tenant shall agree to attorn to any such mortgagee, provided such mortgagee agrees not to disturb Tenant's possession in accordance with the terms of Exhibit "F" hereunder so long as Tenant is in compliance with this Lease. Tenant agrees to permit such mortgagee (or other purchaser at any foreclosure sale), and its successors and assigns, on acquiring Landlord's interest in the Leased Premises and the Lease, to become substitute Landlord hereunder, with liability only for such Landlord obligations as accrue after Landlord's interest is so acquired. Tenant agrees to attorn to any successor Landlord.

18. **ESTOPPEL INSTRUMENTS:**

At any time and from time to time upon the reasonable written request of either of the parties hereto, or any Mortgage Lender, prospective purchaser, as the case may be, such party shall within five (5) business days following receipt of a request by the other, deliver to the party requesting the same an estoppel certificate executed in recordable form stating (i) whether or not this Lease is in full force and effect, (ii) whether or not any rights to renew the term of this Lease have been exercised and the date on which this Lease will terminate, (iii) whether or not this Lease

has been modified or amended in any way and attaching a copy of such modification or amendment, (iv) whether or not there are any existing defaults under this Lease to the knowledge of the party executing the certificate, and specifying the nature of such defaults, if any, (v) the status of rent payments and (vi) any other facts regarding the operation of this Lease which the Mortgage Lender or prospective purchaser may reasonably request.

19. **ACCESS TO PREMISES BY LANDLORD:**

Landlord shall have access to the Leased Premises at all reasonable hours and upon reasonable advance notice to Tenant during the original term of this Lease and any renewal terms for the purpose of examining the same; provided, however, that Landlord shall not interfere in any way with the business of Tenant, except that during an emergency, such notice will not be required.

20. **ASSIGNMENT AND SUBLETTING BY TENANT:**

Provided Tenant is in good standing under the Lease, Tenant shall have the right to assign or sublet to a retail business with prior written consent of the Landlord, which shall not be unreasonably delayed or withheld.

21. **EXTENSION PERIOD:**

There are 2 extension periods of Five (5) years each. Any extension hereof shall be subject to the provisions of this lease and all of its terms. Tenant shall notify Landlord in writing Twelve (12) months prior to the expiration of the initial lease term whether or not they wish to exercise the extension period.

22. **NON-WAIVER:**

The failure of Landlord or Tenant to enforce any of the rights given to it under this Lease by reason of the violation of any of the covenants in this Lease to be performed by Tenant or Landlord shall not be construed as a waiver of the rights of Landlord or Tenant to exercise any such rights as to any subsequent violations of such covenants, or as a waiver of any of the rights given to Landlord or Tenant by reason of the violation of any of the other covenants of this Lease.

23. **HOLDING OVER:**

In the event Tenant remains in possession of the Leased Premises after the expiration of this Lease and without the execution of a new lease, then Tenant shall be deemed to be occupying the Leased Premises as a tenant from month to month at a rental rate equal to One and one half times (1.5x) the monthly rental provided for herein at the expiration of this Lease and otherwise subject to all the conditions, provisions and obligations of this Lease insofar as they are applicable to month to month tenancy.

24. **CONSTRUCTION OF LEASE:**

Words of any gender used in this Lease shall be held to include any other gender, and words in the singular number shall be held to include the plural, when the sense requires. Wherever used herein, the words "Landlord" and "Tenant" shall be deemed to include the heirs, personal representatives, legal representatives, successors, subtenant and assigns of said parties, unless the context excluded such construction.

25. **INVALIDITY OF PROVISIONS:**

If any term or provision of this Lease or the application thereof to any person or circumstances shall, to any extent, be invalid or unenforceable, the remainder of this Lease, or the application of such term or provision to persons whose circumstances are other than those as to which it is held invalid or unenforceable, shall not be affected thereby.

26. **SERVICE OF NOTICE:**

Notices hereunder shall be in writing signed by the party serving the same and shall be sent by Registered or Certified U.S. Mail, Return Receipt Requested or by overnight courier, postage prepaid, and (a) if intended for Landlord, shall be addressed to:

Olek DeRowe
917 Realty, LLC
420 Lexington Ave, Suite 300
New York, New York 10170

(b) if intended for Tenant, shall be addressed to:

Marc Taxiera
39 Calam Avenue,
Ossining, NY 10562

with a copy sent via Email to:

Robert W. Romano, Esq.
Romanolaw@gmail.com

or to such other alternate addresses as either party may have furnished in writing to the other from time to time as a place for the service of notice. Any notice so mailed shall be deemed to have been "given" as of the time said notice is deposited in the U.S. certified or registered mail or deposited with an overnight courier, and shall be deemed "delivered," "received" or "actually received" or words of similar import upon receipt or refusal by the party intended to be given said notice. Attorneys for each party may give notices on behalf of their client.

27. **SURVIVAL OF LEASE COVENANTS:**

The terms, conditions and covenants of this Lease shall be binding upon and shall inure to the benefit of each of the parties hereto, their heirs, personal representatives, legal representatives, successors or assigns, and shall run with the land in accordance with their respective interests.

28. **SECURITY DEPOSIT:**

Tenant has deposited with Landlord a security deposit in an amount equal to two (2) month's Rent, Thirteen Thousand Dollars (\$13,000.00) as of the date of the lease execution (the "Security Deposit"). This security deposit will be required to be kept up to date every year with an additional deposit of 3.5% of the rent so as to render said deposit equal to two months rent throughout the term of the Lease and any extension thereof. At the end of the Lease Term the Security Deposit shall be returned promptly to Tenant after the termination of this Lease, less any amounts justly due to Landlord. If Tenant defaults in respect of any provisions of this Lease, Landlord may apply or retain the whole or any part of the security deposit to the extent required for the payment of any rents as to which Tenant is in default or for any sum that Landlord may expend or may be required to expend by reason of Tenant's default under this Lease providing notification of default and opportunity to cure has been given to Tenant pursuant to this Lease. In

the event Landlord applies any portion of the security during the Term, upon demand Tenant shall replenish the deposit so as to maintain two (2) full month's rent as security throughout the Term.

29. **ADDITIONAL RENT TERMS**

In consideration of renovations, application fees and costs for obtaining permits, application fees and costs for obtaining an applicable Certificate of Occupancy - Tenant will not incur, rent for the period of October 15, 2021 through March 15, 2022 (150 days from Landlord's delivery of the premises).

30. **FORCE MAJEURE:**

Notwithstanding anything to the contrary in this Lease, whenever a provision within this Lease it becomes impossible for Landlord or Tenant to perform their obligations as a result of war, civil riots, labor disputes, lock-outs, inability to procure materials, failure of power, restrictive governmental laws or regulations, utility company or other governmental agency delays, strikes, or acts of God or the elements ("Force Majeure"), then Landlord and Tenant shall be excused from such performance without penalty or other liability or a breach of or default under this Lease to the other party for the period of time in which the event or events giving rise to the impossibility of performance shall exist.

31. **INTERPRETATION: GOVERNING LAW:**

Wherever the word "Landlord" or "Tenant" is used in this Lease, it shall be considered to be in the plural as necessary, and when the singular and/or neuter pronouns are used herein, the same shall be construed as including all persons, firms, partnerships, associations and corporations designated respectively as Landlord or Tenant in the heading of this instrument wherever the context requires. Where multiple persons have signed this Lease as Tenant, their liability hereunder shall be regarded to be joint and several. This Lease shall be governed by and construed under the laws of the State of New York. The captions of the Articles and Sections of this Lease are for convenience only, are not operative parts of this Lease and do not in any way limit or amplify the terms and provisions of this Lease.

32. **COUNTERPARTS:**

This Lease may be executed in two or more counterparts and shall be deemed to have become effective when and only when one or more of such counterparts shall have been signed by or on behalf of each of the parties hereto (although it shall not be necessary that any single counterpart be signed by or on behalf of each of the parties hereto, and all such counterparts shall be deemed to constitute but one and the same instrument) and shall have been delivered by each of the parties to the other.

33. **TRANSFER OF LANDLORD'S INTEREST:**

Tenant agrees that if Landlord should sell or otherwise transfer its interest in the Leased Premises, that upon an undertaking by the purchaser or transferee to be responsible for all of the covenants and undertakings of Landlord hereunder, that the transferor Landlord shall thereafter have no liability to Tenant under this Lease or any modifications, amendments or extensions thereof, except for such liabilities as might have accrued prior to the date of such sale or transfer, and that Tenant shall recognize and attorn to such purchaser or transferee as its new Landlord hereunder provided the new Landlord executes a non-disturbance agreement. Landlord and Tenant expressly agree that the covenant of quiet enjoyment and all other covenants in this Lease on the part of the Landlord are not personal covenants but shall transfer with the ownership of the land.

34. **COMPLIANCE WITH LAWS:**

Landlord and Tenant agree promptly to comply with any and all laws, ordinances, or orders of any and all municipal, state and federal authorities, boards, commissions, and other governmental agencies with respect to the Leased Premises, as applicable, and any improvement thereto.

35. **NO CONSTRUCTION AGAINST DRAFTER:**

This Lease has been prepared and reviewed by the parties and their professional advisors. The parties and their separate advisors believe that this Lease is the product of their joint efforts, that it expresses their agreement and that it should not be interpreted in favor of either Landlord or Tenant or against either Landlord or Tenant merely because of their efforts in the preparation.

36. **LIMITATION OF LANDLORD LIABILITY:**

Tenant acknowledges and agrees that the liability of Landlord under this Lease shall be limited to its interest in the land and any judgments rendered against Landlord shall be satisfied solely out of the proceeds of sale of its interest in the Land. No personal judgment shall lie against Landlord upon extinguishment of its rights in the and any judgment so rendered shall not give rise to any right of execution or levy against Landlord's assets. The provisions hereof shall inure to Landlord's successors and assigns including any mortgagee. The foregoing provisions are not intended to relieve Landlord from the performance of any of Landlord's obligations under this Lease, but only to limit the personal liability of Landlord in case of recovery of a judgment against Landlord; nor shall the foregoing be deemed to limit Tenant's rights to obtain injunctive relief or specific performance or to avail itself of any other right or remedy which may be awarded Tenant by law or under this Lease.

37. **COMPLIANCE WITH LOCAL, STATE and FEDERAL LAWS:**

(a) Tenant. at Tenant's sole cost and expense. shall promptly and faithfully comply with, or cause to be complied with, and conform to, in all material respects, all present and future laws, statutes, codes, ordinances, orders, judgments, decrees, injunctions, rules, regulations and requirements pertaining to the demised premises, including, without limitation, any applicable environmental protection, zoning, building, architectural barriers to the handicapped, fire, safety and parking laws, ordinances, rules or regulations, together with all applicable regulations of every Fire Marshal having jurisdiction over the building, and all covenants, restrictions and conditions now or hereafter of record, which may be applicable to any part of the demised premises, or to the use, occupancy, possession, operation, maintenance, alteration, repair or reconstruction of any part of the demised premises (collectively, the "Requirements"). Tenant shall have the right at Tenant's sole cost and expense and acting in good faith, to contest or object to the validity of any Requirement by appropriate legal proceedings (but such right shall not be deemed or construed in any way as relieving, modifying or extending Tenant's covenant to comply therewith as provided in this Article).

Notwithstanding the foregoing, such right to contest or object to the validity of any Requirement shall be deemed to suspend Tenant's covenant to comply therewith, pending a final

determination of the legal proceedings initiated by Tenant, if all of the following conditions are satisfied: (I) contemporaneously with the commencement of such proceedings or promptly thereafter, Tenant shall give written notice thereof to Landlord, (ii) the legal proceedings shall operate conclusively to prevent the sale or forfeiture of the demised premises, or any part thereof, for failure to comply with any such Requirement prior to final determination of such proceedings, (iii) if during such proceedings a lien or cloud of title shall exist with respect to any of the demised premises, or any part thereof: for failure to comply with such Requirement prior to final determination of such proceedings, Tenant shall provide Landlord with good and sufficient bond or other security reasonably satisfactory to Landlord in an amount equal to the aforesaid lien or cloud on title, or if the amount thereof is uncertain, in an amount reasonably satisfactory to Landlord, and (iv) Landlord shall not be subject to criminal liability for any failure by Tenant to comply with such Requirements during the pendency of such proceedings.

(b) The demised premises will comply with all applicable Environmental Laws (as hereinafter defined) during Tenant's period of use and occupancy thereof. The Tenant covenants that the demised premises shall be kept free of Hazardous Materials, and shall not be used to generate, manufacture, refine, transport, treat, store, handle, dispose of, transfer, produce, process or in any manner deal with, Hazardous Materials, and the Tenant shall not cause or permit, as a result of any intentional or unintentional act or omission on the part of the Tenant or any tenant or subtenant or occupant, the installation of Hazardous Materials in the demised premises or onto any other property or suffer the presence of Hazardous Materials in the demised premises. The Tenant shall comply with and ensure compliance by all tenants,

(c) The Tenant shall protect, indemnify, and save harmless the Landlord, its officers, directors, employees, shareholders, agents, successors and assigns from and against all liabilities, obligations, claims, damages, penalties, causes of action, costs and expenses (including without limitation reasonable attorney's fees and expenses, consultant fees, investigation and laboratory fees), imposed upon or incited by or asserted against the Landlord, its officers, directors, employees, shareholders, agents, successors and assigns by reason of (A) any violation of Environmental Laws or the presence, disposal, escape, seepage, leakage, spillage, discharge, emission, release, or threatened release of any Hazardous Materials on, from, or affecting the

demised premises or any other property; (B) any personal injury including wrongful death) or property damage (real or personal) arising out of or related to such Hazardous Materials; C) any lawsuit brought or threatened, settlement reached, or government order relating to such Hazardous Materials; or (D) any violation of any policies or requirements of the Landlord which are based upon or in any way related to such Environmental Laws or Hazardous Materials.

38. FIRST RIGHT OF REFUSAL

If, at any time during the term of this Lease, Landlord shall, in response to a bona fide offer to purchase all or part of its interest in the Building from a third party, desire to sell or otherwise dispose of such interest, it shall notify Tenant in writing of the price at which and the terms upon which it desires to sell the same, and Lessee shall, within seven (7) business days of receipt of the notice, notify Landlord in writing whether it wishes to purchase such interest at the price and on the terms set forth in the notice. If Tenant elects to purchase such interest, Landlord shall be bound to convey, assign, or otherwise transfer such interest to Lessee promptly thereafter at such price and on such terms. If Tenant elects not to purchase such interest or fails to give notice of its intention within the seven (7) business day period, Landlord shall be free to convey, assign, or otherwise transfer such interest to the third party at a price not less than stated in the notice or on more favorable terms than those stated in the notice. Any conveyance by Landlord to a third party shall be subject to the terms of this Lease.

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IN WITNESS WHEREOF, the parties hereto have affixed their hands and seals the day and year first above mentioned.

Landlord:

DEPACK PROPERTIES II, LLC

By: _____

Name: Olek DeRowe

Title: Managing Member

Tenant:

Augustine's Salumeria LLC

By: _____

Name: Marc Taxeria

Title: Member